

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

5. NICOLE LONG V. KYLE LONG

24FL0660

On February 10, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support, child support, and attorney's fees. She filed her Income and Expense Declaration concurrently therewith. All required documents were served on Respondent on February 17th.

Respondent filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on April 14th.

Petitioner filed and served an updated Income and Expense Declaration on April 20th.

Petitioner is requesting guideline child and spousal support along with an order for the parties to equally share in the costs of all extracurricular activities and uninsured medical expenses. She further requests attorney's fees in the amount of \$10,000 pursuant to Family Code § 2030.

Respondent agrees to guideline support but asks that the support calculations be made using Petitioner's updated income. He further agrees to equally splitting the cost of agreed upon extracurricular activities. He asks that the parties alternate claiming the children on their taxes, Petitioner in the odd years and Respondent in the even years. He asks that the parties be ordered to meet and confer on the issue of health insurance each year during open enrollment. Finally, Respondent opposes the request for attorney's fees.

Regarding support, utilizing the figures as outlined in the attached Xspouse report, the court finds that child support is \$1,908 per month and spousal support per the Alameda formula is \$436 per month. Respondent is ordered to pay Petitioner \$2,344 per month as and for child support and temporary spousal support, payable on the 15th of the month (and deemed late if paid after the 20th of the month) until further order of the court or legal termination. This order is effective as of February 15, 2026.

The court finds the above order results in arrears in the amount of \$7,032 through and including April 15, 2026. The court orders Respondent pay Petitioner \$293 on the 1st of each month until paid in full (approximately 24 months). If a payment is late or missed the remaining balance is due in full with legal interest within five (5) days.

In addition to the foregoing monthly support payments, the parties are ordered to equally share in any uninsured medical care costs for the children, childcare costs when such costs are incurred as a result of employment or necessary education for employment,

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and agreed upon extracurricular activities. The parties are ordered to follow the procedures as set forth in the attached FL-192.

The parties are ordered to alternate claiming the minors on their taxes. Petitioner is to claim both children for odd tax years. Respondent will claim the children on even tax years. Additionally, the parties are ordered to meet and confer on the issue of health care for the children annually during open enrollment.

Finally, regarding the request for attorney's fees the request is denied. The public policy of Family Code section 2030 is to provide "at the outset of litigation, consistent with the financial circumstances of the parties, parity between spouses in their ability to obtain effective legal representation." In *Re Marriage of Keech*, 75 Cal. App. 4th 860, 866 (1999). This ensures each party has access to legal representation to preserve each party's rights. In the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2).

Here, while there is a disparity in income between the parties, that disparity is significantly decreased by the support orders made herein. Additionally, Petitioner has over \$50,000 in liquid assets available to her to pay for her attorney's fees and costs. Therefore, the court does not find that there is unequal access to counsel and the request for attorney's fees is denied.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: REGARDING SUPPORT, UTILIZING THE FIGURES AS OUTLINED IN THE ATTACHED XSPOUSE REPORT, THE COURT FINDS THAT CHILD SUPPORT IS \$1,908 PER MONTH AND SPOUSAL SUPPORT PER THE ALAMEDA FORMULA IS \$436 PER MONTH. RESPONDENT IS ORDERED TO PAY PETITIONER \$2,344 PER MONTH AS AND FOR CHILD SUPPORT AND TEMPORARY SPOUSAL SUPPORT, PAYABLE ON THE 15TH OF THE MONTH (AND DEEMED LATE IF PAID AFTER THE 20TH OF THE MONTH) UNTIL FURTHER ORDER OF THE COURT OR LEGAL TERMINATION. THIS ORDER IS EFFECTIVE AS OF FEBRUARY 15, 2026.

THE COURT FINDS THE ABOVE ORDER RESULTS IN ARREARS IN THE AMOUNT OF \$7,032 THROUGH AND INCLUDING APRIL 15, 2026. THE COURT ORDERS RESPONDENT PAY PETITIONER \$293 ON THE 1ST OF EACH MONTH UNTIL PAID IN FULL

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(APPROXIMATELY 24 MONTHS). IF A PAYMENT IS LATE OR MISSED THE REMAINING BALANCE IS DUE IN FULL WITH LEGAL INTEREST WITHIN FIVE (5) DAYS.

IN ADDITION TO THE FOREGOING MONTHLY SUPPORT PAYMENTS, THE PARTIES ARE ORDERED TO EQUALLY SHARE IN ANY UNINSURED MEDICAL CARE COSTS FOR THE CHILDREN, CHILDCARE COSTS WHEN SUCH COSTS ARE INCURRED AS A RESULT OF EMPLOYMENT OR NECESSARY EDUCATION FOR EMPLOYMENT, AND AGREED UPON EXTRACURRICULAR ACTIVITIES. THE PARTIES ARE ORDERED TO FOLLOW THE PROCEDURES AS SET FORTH IN THE ATTACHED FL-192.

THE PARTIES ARE ORDERED TO ALTERNATE CLAIMING THE MINORS ON THEIR TAXES. PETITIONER IS TO CLAIM BOTH CHILDREN FOR ODD TAX YEARS. RESPONDENT WILL CLAIM THE CHILDREN ON EVEN TAX YEARS. ADDITIONALLY, THE PARTIES ARE ORDERED TO MEET AND CONFER ON THE ISSUE OF HEALTH CARE FOR THE CHILDREN ANNUALLY DURING OPEN ENROLLMENT.

THE REQUEST FOR ATTORNEY'S FEES IS DENIED.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	3	2026			
% time with NCP	40.00 %	0.00 %		Comb. net spendable	13384	13470
Filing status	HH/MLA	HH/MLA	GUIDELINE	Percent change	0%	1%
# exemptions	3	4 *	Nets(adjusted)	Father		
Wages+salary	10881	4340	Father	8568		
Self-employed income	0	0	Mother	4816	-2344	-2236
Other taxable income	0	557	Total	13384	6224	6332
TANF+CS received	0	0	Support		0	108
Other nontaxable income	0	0	Addons	0	% of combined spendable	47%
New spouse income	0	0	Guideln CS	1908	% of saving over guideline	0%
401(k) employee contrib	0	0	Alameda SS	436	Total taxes	2313
Adjustments to income	0	0	Total	2344	Dep. exemption value	0
SS paid prev marriage	0	0	-		# withholding allowances	0
CS paid prev marriage	0	0			Net wage paycheck	7871
Health insurance	0	0			Mother	
Other medical expense	0	0			Payment cost/benefit	2344
Property tax expense	0	0			Net spendable income	7160
Ded interest expense	0	0	Proposed		Change from guideline	0
Charitable contributions	0	0	Tactic 9		% of combined spendable	53%
Misc tax deductions	0	0	CS	2279	% of saving over guideline	0%
Qual bus income ded	0	0	SS	630	Total taxes	81
Required union dues	0	0	Total	2909	Dep. exemption value	0
Mandatory retirement	0	0			# withholding allowances	0
Hardship deduction	0 *	0 *	Saving	86	Net wage paycheck	3562
Other GDL deductions	0	0	Releases	3		
Child care expenses	0	0	Released to Father			

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	40 - 60	0	0	0	Father	1908	Father	1908	Father
	40 - 60	0	0	0	Father	316	Father	316	Father
	40 - 60	0	0	0	Father	567	Father	567	Father
	40 - 60	0	0	0	Father	1024	Father	1024	Father

NOTICE OF RIGHTS AND RESPONSIBILITIES REGARDING CHILD SUPPORT

Childcare and Health Care Costs and Reimbursement Procedures

Your child support order may include a provision for payment of childcare or uninsured health care costs. Childcare costs may be included as part of the monthly child support payment or reimbursable as a percentage of the costs. If the childcare costs are included as part of the monthly child support payment, you must pay that amount each month until the court changes (modifies) the child support order. If you need to change your child support order because there has been a change in the cost of childcare, see page 2.

If you have a child support order that includes a provision for the reimbursement of a percentage of childcare costs or a portion of the child's or children's health care costs and those costs are not paid by insurance, the **law says**:

1. **Notice.** You must give the other parent an itemized statement of the charges that have been billed for any childcare costs or health care costs not paid by insurance. You must give this statement to the other parent within a reasonable time, but no more than 90 days after those costs were given to you.
2. **Proof of full payment.** If you have already paid all of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid them and (2) ask for reimbursement for the other parent's court-ordered share of those costs.
3. **Proof of partial payment.** If you have paid only your share of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid your share, (2) ask that the other parent pay his or her share of the costs directly to the childcare or health care provider, and (3) give the other parent the information necessary for that parent to be able to pay the bill.
4. **Payment by notified parent.** If you receive notice from a parent that a childcare or uninsured health care cost has been incurred, you must pay your share of that cost within the time the court orders; or if the court has not specified a period of time, you must make payment (1) within 30 days from the time you were given notice of the amount due, (2) according to any payment schedule set by the health care provider, (3) according to a schedule agreed to in writing by you and the other parent, or (4) according to a schedule adopted by the court.
5. **Going to court.** Sometimes parents get into disagreements about childcare and health care costs. If you and the other parent cannot resolve the situation after talking about it, you can request that the court make a decision.
- a. **Disputed requests for payment.** If you dispute a request for payment made by the other parent, you may file a request for the court to resolve the dispute, but only if you pay the requested amount before filing your request.
- b. **Nonpayment.** If you claim that the other parent has failed to pay you back for a payment, or they have failed to make a payment to the provider after proper notice, you may file a request for the court to resolve the dispute.
- c. **Paid charges.** The court will presume that if uninsured health care costs or childcare costs for employment or necessary training for job skills have been paid, those costs were reasonable. If you want to dispute paid charges, you will have to show the court that the costs were unreasonable.
- d. **Attorney's fees.** If the court decides one parent has been unreasonable, it can order that parent to pay the other parent's attorney's fees and costs.
- e. **Court forms.** Use forms [FL-300](#) and [FL-490](#) to get a court date. See form [FL-300-INFO](#) for information about completing, filing, and serving your court papers.
6. **Court-ordered insurance coverage.** If a parent provides health care insurance as ordered by the court, that insurance must be used at all times to the extent that it is available for health care costs.
- a. **Burden to prove.** The parent claiming that the coverage is inadequate to meet the child's needs has the burden of proving that to the court.
- b. **Cost of additional coverage.** If a parent purchases health care insurance in addition to that ordered by the court, that parent must pay all the costs of the additional coverage. In addition, if a parent uses alternative coverage that costs more than the coverage provided by court order, that parent must pay the difference.
7. **Preferred health providers.** If the court-ordered coverage designates a preferred health care provider, that provider must be used at all times consistent with the terms of the health insurance policy. When any parent uses a health care provider other than the preferred provider, any health care costs that would have been paid by the preferred health provider if that provider had been used must be the sole responsibility of the parent incurring those costs.
8. **Need help?** Contact the family law facilitator in your county or call your county's bar association and ask for an experienced family lawyer.

Information Sheet on Changing a Child Support Order

General Info

The court has made a child support order in your case. This order will remain the same unless one of the parents requests that the support be changed (modified). An order for child support can be modified by filing a request to change child support and serving the other parent. If both parents agree on a new child support amount, they can complete, sign, and file with the court a *Stipulation to Establish or Modify Child Support and Order* (form [FL-350](#)). (**Note:** If the local child support agency is involved in your case, it must be served with any request to change child support and approve any agreement.)

Online Self-Help Guide

For more information about how child support works, visit: <https://selfhelp.courts.ca.gov/child-support>.

When a Child Support Order May Be Changed

The court considers several things when ordering the payment of child support.

- First, the number of children is considered, along with the percentage of time each parent has physical custody of the children.
- Next, the net disposable incomes of both parents are determined (which is how much money is left each month after taxes and certain other items like health insurance, union dues, or other child support ordered and paid are subtracted from a parent's paycheck). The court can also look at a parent's earning ability.
- The court considers both parents' tax filing status and may consider hardships, such as the cost of raising the parent's child from another relationship who lives with the parent.

A parent can request to change an existing order for child support when circumstances change significantly. For example if the net disposable income of one of the parents changes, parenting time changes, or a new child is born.

Examples

- You have been ordered to pay \$500 per month in child support. You lose your job. You will continue to owe \$500 per month, plus 10 percent interest on any unpaid support, unless you file a motion to modify your child support to a lower amount and the court orders a reduction.
- You are currently receiving \$300 per month in child support from the other parent, whose net income has just increased substantially. You will continue to receive \$300 per month unless you file a motion to modify your child support to a higher amount and the court orders an increase.
- You are paying child support based on having physical custody of your children 30 percent of the time. After several months it turns out that you actually have physical custody of the children 50 percent of the time. You may file a motion to modify child support to a lower amount.

How to Change a Child Support Order

To change a child support order, you must file papers with the court. *Remember:* You must follow the order you have now.

What forms do I need?

If you are asking to change a child support order, you must fill out one of these forms:

- Form [FL-300](#), *Request for Order* **or**
- Form [FL-390](#), *Notice of Motion and Motion for Simplified Modification of Order for Child, Spousal, or Family Support*

You must also fill out one of these forms, and attach proof of income for the past two months (like your paycheck stubs):

- Form [FL-150](#), *Income and Expense Declaration* **or**
- Form [FL-155](#), *Financial Statement (Simplified)*

What if I am not sure which forms to fill out?

Contact the family law facilitator in your county. You can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

After you fill out the forms, file them with the court clerk and ask for a hearing date. Write the hearing date on the form.

The clerk may ask you to pay a filing fee. If you cannot afford the fee, fill out these forms, too:

- Form [FW-001](#), *Request to Waive Court Fees* **and**
- Form [FW-003](#), *Order on Court Fee Waiver (Superior Court)*

You must serve the other parent. If the local child support agency is involved, serve it too.

- This means someone 18 or over—not you—must deliver copies of your filed court forms to the other parent, at least **16 court days** before the hearing. Add **5 calendar days** if delivered by mail within California (see Code of Civil Procedure section 1005 for other situations).
- **Court days** are weekdays when the court is open for business (Monday through Friday except court holidays). **Calendar days** include all days of the month, including weekends and holidays. To find court holidays, go to: www.courts.ca.gov/holidays.htm.

Blank copies of both of these forms must also be served:

- Form [FL-320](#), *Responsive Declaration to Request for Order*
- Form [FL-150](#), *Income and Expense Declaration*

Then the server fills out and signs a *Proof of Service*. Take this form, plus one copy, to the clerk and file it at least one week before your hearing.

Go to your hearing and ask the judge to change the support. Bring your tax returns from the last two years and your proof of income for the past two months (like your paycheck stubs). The judge will look at your information, listen to both parents, and make an order. After the hearing, fill out:

- Form [FL-340](#), *Findings and Order After Hearing* **and**
- Form [FL-342](#), *Child Support Information and Order Attachment*

Need help?

Contact the family law facilitator in your county or call your county's bar association and ask for an experienced family lawyer.

Information About Child Support for Incarcerated or Confined Parents

1. Child support. As of September 27, 2022, child support automatically stops if the parent who has to pay is confined against their will for more than 90 days in a row in jail, prison, juvenile detention, a mental health facility, or other institution.

Exception. Child support does not automatically stop if the parent who has to pay has money available to pay child support.

2. Past confinement. Child support also automatically stops during past confinement if it was ordered from October 8, 2015, through December 31, 2019, or January 1, 2021, through September 26, 2022, and the parent who has to pay was confined for more than 90 days in a row during the same time frame.

Exceptions for past confinement. Child support does not automatically stop if the parent who has to pay was in jail or prison for failing to pay child support or for domestic violence against the other parent or the child, or if they had money available to pay support.

3. Timing. The date child support automatically restarts will depend on the parent's release date. If you need to change your child support order, see page 2.

- a. **If released before January 1, 2024,** child support automatically restarts the first day of the first full month after the parent is released.
- b. **If released after January 1, 2024,** child support will automatically restart the first day of the 10th month after the parent is released.

Employment before the 10-month period ends: If the parent who has to pay support starts working before the date child support is set to automatically restart, the person who is owed support or the local child support agency can request the court restart the child support order early. The court may order a different amount of child support if appropriate.

4. More info. For more information about child support and incarcerated parents, see Family Code section 4007.5 or go to <https://selfhelp.courts.ca.gov/child-support/incarcerated-parent>. You can also contact the family law facilitator in your county and can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

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6. MACHAELA MELROSE V. SHAWN SANTELIO

23FL1121

On January 29, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. He filed his Income and Expense Declaration concurrently therewith. All required documents, with the exception of a blank FL-320, were served on January 29th.

The parties attended Child Custody Recommending Counseling (CCRC) on March 5, 2026 and were able to reach agreements on all issues. A report codifying those agreements was prepared on March 5th and served on the parties on March 6th.

Petitioner filed and served her Responsive Declaration to Request for Order on April 17th.

Respondent is requesting a week on/week off schedule and he asks that Petitioner not have any phone calls with the child during his parenting time. He further asks that the child not attend daycare during his parenting time.

Petitioner asks the court not to adopt the agreements contained in the CCRC report. She states that a portion of the agreements were never discussed. She asks that the parties be re-referred to CCRC. Alternatively, she asks the court to award her primary physical custody and order visits for Respondent to occur every other weekend.

While Petitioner maintains that the agreements contained in the CCRC report were not, in fact, agreed upon, the court has reviewed them and does find them to be in the best interests of the minor. As such, the provisions of the March 5, 2026 CCRC report identified as agreements are hereby adopted as the orders of the court.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #6: WHILE PETITIONER MAINTAINS THAT THE AGREEMENTS CONTAINED IN THE CCRC REPORT WERE NOT, IN FACT, AGREED UPON, THE COURT HAS REVIEWED THEM AND DOES FIND THEM TO BE IN THE BEST INTERESTS OF THE MINOR. AS SUCH, THE PROVISIONS OF THE MARCH 5, 2026 CCRC REPORT IDENTIFIED AS AGREEMENTS ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE